



Bill Number: S.B. 1160

Dunn Floor Amendment

Reference to: PUBLIC SAFETY Committee Amendment

Amendment drafted by: Leg. Council

FLOOR AMENDMENT EXPLANATION

- Specifies that a person must obtain written consent, rather than consent, from another person with legal authority over the ticketed entertainment event to operate a civil unmanned aircraft at a ticketed entertainment event.

DUNN FLOOR AMENDMENT
SENATE AMENDMENTS TO S.B. 1160
(Reference to PUBLIC SAFETY Committee amendment)

Amendment instruction key:

[GREEN UPPERCASE UNDERLINING IN BRACKETS] indicates that the amendment is adding text to statute or previously enacted session law.
[Green lowercase underlining in brackets] indicates that the amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~[GREEN UPPERCASE STRIKEOUT IN BRACKETS]~~ indicates that the amendment is removing new text from statute or previously enacted session law.
~~[Green lowercase strikeout in brackets]~~ indicates that the amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double green carets enclosing an entire section>> indicates that the amendment is adding the section to the bill.
~~<<Green strikeout with double green carets enclosing an entire section>>~~ indicates that the amendment is removing the section to the bill.
{[ORANGE UPPERCASE UNDERLINING IN DOUBLE CURLY BRACKETS]} indicates that the amendment to an amendment is adding text to statute or previously enacted session law.
{[Orange lowercase underlining in double curly brackets]} indicates that the amendment to an amendment is adding text to new session law or is restoring previously stricken text to existing statute.
~~{[ORANGE UPPERCASE STRIKEOUT IN DOUBLE CURLY BRACKETS]}~~ indicates that the amendment to an amendment is removing new text from statute or previously enacted session law.
~~{[Orange lowercase strikeout in double curly brackets]}~~ indicates that the amendment to an amendment is removing text from existing statute, previously enacted session law or new session law.
<<Double orange underlined carets enclosing an entire section>> indicate that the amendment to an amendment is adding the section to the bill.
~~<<Orange strikeout with double orange underlined carets enclosing an entire section>>~~ indicates that the amendment to an amendment is removing the section from the bill.

1 The bill as proposed to be amended is reprinted as follows:

2 Section 1. Section 13-3729, Arizona Revised Statutes, is amended to
3 read:

4 13-3729. Unlawful operation of model or unmanned aircraft;
5 state preemption; classification; definitions

6 A. It is unlawful for a person to operate a model aircraft or a
7 civil unmanned aircraft if the operation:

8 1. Is prohibited by a federal law or regulation that governs
9 aeronautics, including federal aviation administration regulations.

10 2. Interferes with a law enforcement, firefighter or emergency
11 services operation.

12 B. It is unlawful for a person to operate or use an unmanned
13 aircraft or unmanned aircraft system to intentionally photograph or loiter
14 over or near a critical facility in the furtherance of any criminal
15 offense.

16 C. IT IS UNLAWFUL FOR A PERSON TO OPERATE A CIVIL UNMANNED AIRCRAFT
17 IF THE OPERATION IS WITHIN ~~[FOUR HUNDRED]~~ [FIVE THOUSAND TWO HUNDRED]

1 ~~EIGHTY]~~ FEET OF OR WITHIN ~~[FOUR HUNDRED]~~ [FIVE THOUSAND TWO HUNDRED
2 EIGHTY] FEET ABOVE A TICKETED ENTERTAINMENT EVENT UNLESS THE PERSON:
3 1. OBTAINS ~~{{WRITTEN}}~~ CONSENT FROM ANOTHER PERSON WITH LEGAL
4 AUTHORITY OVER THE TICKETED ENTERTAINMENT EVENT.
5 2. IS AN EMPLOYEE OF THE PROPERTY WHERE THE TICKETED ENTERTAINMENT
6 EVENT IS HELD AND IS CONDUCTING OFFICIAL BUSINESS.
7 3. IS AN EMPLOYEE OF A WATER, SEWER, ELECTRIC, TELECOMMUNICATIONS,
8 CABLE OR OTHER PUBLIC OR REGULATED UTILITY AND IS CONDUCTING OFFICIAL
9 BUSINESS.
10 4. IS OPERATING THE PERSON'S OWN CIVIL UNMANNED AIRCRAFT ABOVE THE
11 PERSON'S OWN PRIVATE PROPERTY AND THE OPERATION IS CONSISTENT WITH FEDERAL
12 LAW AND IS NOT USED FOR ANY OF THE FOLLOWING:
13 (a) COMMERCIAL PURPOSES.
14 (b) TO CONVEY OR COMMUNICATE A MESSAGE OR TO RECORD FOR THE
15 PURPOSES OF COMMERCIAL BROADCASTING OR PUBLICATION.
16 (c) TO MONITOR OR OTHERWISE INTERFERE IN ANY WAY WITH A TICKETED
17 ENTERTAINMENT EVENT.
18 ~~D.~~ D. Except as authorized by law, a city, town or county may not
19 enact or adopt any ordinance, policy or rule that relates to the ownership
20 or operation of an unmanned aircraft or unmanned aircraft system or
21 otherwise engage in the regulation of the ownership or operation of an
22 unmanned aircraft or an unmanned aircraft system. Any ordinance, policy
23 or rule that violates this subsection, whether enacted or adopted by the
24 city, town or county before or after August 6, 2016, is void.
25 ~~E.~~ E. This section does not:
26 1. Apply to a person or entity that is authorized or allowed by the
27 federal aviation administration to operate or use an unmanned aircraft
28 system if the person's or entity's operation or use complies with the
29 authorization granted to the person or entity or with federal aviation
30 administration rules.
31 2. Prohibit a city, town or county from enacting or adopting
32 ordinances or rules on the operation or use of a public unmanned aircraft
33 that is owned by the city, town or county.
34 3. Prohibit a city, town or county from enacting or adopting
35 ordinances or rules that regulate the takeoff or landing of a model
36 aircraft in a park or preserve owned by the city, town or county if:
37 (a) There are other parks or preserves that are within the city,
38 town or county and that are available for model aircraft operation.
39 (b) The city, town or county only has one park or preserve that is
40 within the city, town or county.
41 4. Apply to the operation of an unmanned aircraft, including a
42 public unmanned aircraft, by a first responder as defined in section
43 36-661 while acting in the first responder's official capacity or an
44 emergency worker while engaged in or supporting authorized emergency
45 management activities or performing emergency functions pursuant to title
46 26, chapter 2.
47 ~~F.~~ F. A violation of subsection B of this section is a class 6
48 felony, except that a second or subsequent violation is a class 5 felony.
49 A violation of subsection A OR C of this section is a class 1 misdemeanor.

1 ~~F.~~ G. For the purposes of this section:

2 1. "Civil unmanned aircraft" means an unmanned aircraft or unmanned
3 aircraft system that is operated by a person for any purpose other than
4 strictly for hobby or recreational purposes, including commercial
5 purposes, or in furtherance of or incidental to any business or media
6 service or agency.

7 2. "Commercial purposes" means the use of an unmanned aircraft in
8 return for financial compensation and includes aerial photography, aerial
9 mapping or geospatial imaging.

10 3. "Critical facility" means any of the following:

11 (a) A petroleum or alumina refinery.

12 (b) A petroleum, chemical or rubber production, transportation,
13 storage or processing facility.

14 (c) A chemical manufacturing facility.

15 (d) A water or wastewater treatment facility and water development,
16 distribution or conveyance system, including a dam.

17 (e) An electric generation facility, as defined in section
18 42-14156, and any associated substation or switchyard.

19 (f) An electrical transmission or distribution substation.

20 (g) An electrical transmission line of at least sixty-nine thousand
21 volts.

22 (h) An electronic communication station or tower.

23 (i) An energy control center.

24 (j) A distribution operating center.

25 (k) A facility that transfers or distributes natural gas, including
26 a compressor station, regulator station, city gate station or pressure
27 limiting station or a liquefied natural gas facility or supplier tap
28 facility.

29 (l) Any railroad infrastructure or facility.

30 (m) A federal, state, county or municipal court.

31 (n) A public safety or emergency operation facility.

32 (o) A federal, state, county or municipal jail or prison or other
33 facility in which persons are incarcerated.

34 (p) A federal or state military installation or facility.

35 (q) A hospital that receives air ambulance services.

36 4. "Model aircraft" has the same meaning prescribed in section 336
37 of the FAA modernization and reform act of 2012 (P.L. 112-95), as amended.

38 5. "Person" means a corporation, firm, partnership, association,
39 individual or organization or any other group acting as a unit.

40 6. "Public unmanned aircraft" means an unmanned aircraft or
41 unmanned aircraft system that is operated by a public agency for a
42 government-related purpose.

43 7. "TICKETED ENTERTAINMENT EVENT" MEANS A MUSIC, SPORTING OR
44 PERFORMING ARTS EVENT THAT IS HELD IN A LOCATION WITH GATED ENTRIES OR
45 BARRIERS THAT PREVENT ACCESS TO THE GENERAL PUBLIC AND IN WHICH A
46 REVOCABLE LICENSE THAT HAS BEEN ISSUED BY AN OWNER, OPERATOR OR LESSEE OF
47 THE PROPERTY IS REQUIRED FOR ATTENDANCE AT THE EVENT.

Senate Amendments to S.B. 1160

1 ~~7.~~ 8. "Unmanned aircraft" means an aircraft, including an aircraft
2 commonly known as a drone, that is operated without the possibility of
3 direct human intervention from within or on the aircraft.

4 ~~8.~~ 9. "Unmanned aircraft system" means an unmanned aircraft and
5 associated elements, including any communication links and components that
6 control the unmanned aircraft.

7 Enroll and engross to conform

8 Amend title to conform

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